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STATE OF FLORIDA
THIRD DISTRICT COURT OF APPEAL

Dieter Muller,

Appellant,

Case No. 3D2026-0037
L.T. Case No. 25-7102-CA-01

v.

Roxana Colmenares,

Appellee.
_____/

APPELLEE'S MOTION TO DISMISS APPEAL AND MOTION TO STRIKE APPELLANT'S INITIAL BRIEF

Appellee, Roxana Colmenares, by and through undersigned counsel, file this *Motion to Dismiss Appeal and Motion to Strike Appellant's Initial Brief*, and in support, states as follows:

The Appendix provided by the Appellant's Counsel demonstrates that his purported counsel, Edgardo Ferreyra and Luks, Santaniello, Petrillo Sohen & Peterfriend, have never been in contact with Appellant Dieter Muller. *See* App'x 191 ("There's no contact right now between ourselves and the defendant."). Indeed, there is no evidence that opposing counsel has authority to represent Mr. Muller at all.

It is well established that an attorney cannot act without a client's consent. *See St. Lucie Estates v. Palm Beach Plumbing Supply Co.*, 133 So. 841, 844 (Fla. 1980) ("The defendant not having been served, the

appearance was at best only a voluntary appearance, and it could not be voluntary without the knowledge or authority of the defendant."); *Gonzalez v. Totalbank*, 472 So. 2d 816, 864–65 (Fla. 3d DCA 1985) ("[A]n attorney is not authorized to represent any person without the consent of that person or something with authority to represent that person."); *Colonial Press of Miami, Inc. v. Sanders*, 264 So. 2d 92, 93 (Fla. 3d DCA 1972) ("An attorney has no power to act for another as legal representative or counsel by virtue of his license alone. He must have a contract of employment, express or implied, with the party for whom he purports to act or someone authorized to represent that party."); *see also Florida Bar v. Brumbaugh*, 355 So. 2d 1186, 1190 (Fla. 1978) ("A person should not be forced to have an attorney represent his legal interests if he does not consent to such representation.").

This proposition has been emphasized by this Court:

> We wish to emphasize for the benefit of the bar that representing someone without their consent is clearly improper. It deprives the "client," at least initially, of the freedom to choose counsel. In cases like the present one, it makes it virtually impossible for counsel to determine if there is some conflict between the multiple clients he purports to represent which might necessitate some action on his part. In situations like the one at bar, where the attorney has no contact with the client whatsoever, it makes it difficult to adhere to ethical considerations designed to allow a client to make informed choices. And, finally, it may expose counsel to liability for any damage caused the "client" by his or her unauthorized acts.

Gonzalez, 472 So. 2d at 865 n.2 (internal citations omitted); *Jensen v. Sierra Grill, Inc.* 876 So. 2d 1264, 1266 (Fla. 3d DCA 2004) (relying on *Gonalez*)

The prohibition against acting on a party's behalf without their knowledge extends to insurance cases. *See Cont'l Ins. Co. v. City of Miami Beach*, 521 So. 2d 232, 233 (Fla. 3d DCA 1988) (affirming summary judgment where insurer failed to ask the insured for approval of independent counsel and the insured was not apprised of the progress of the case).

It is undisputed that no one involved in this case has had contact with Mr. Muller. Accordingly, it is evident that he has not acquiesced to counsel's representation of him. *See Cont'l Ins. Co*, 521 So. 2d at 233 (holding that "[t]here can be no acquiescence [in the handling of a lawsuit] without knowledge" of the "client").

Absent Mr. Muller's authority, the Notice of Appeal and Initial Brief filed by Mr. Muller's purported counsel must be stricken and this case must be dismissed. *See Cacho v. Bank of New York Mellon*, 124 So. 3d 943, 945–46 (Fla. 3d DCA 2013).

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I certify that on October 16, 2026, a copy of this document was furnished via e-mail service to:

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